

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Tuesday, September 22, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Tuesday, September 22, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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17CV-03333	Kevin Gonzalves vs Merced Irrigation District, et al.
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Order to Show Cause Re: Dismissal - Notice of Settlement

Appearance required.

20CV-02661	Spain Air Chemical, Inc. vs J.A. Andrews Farms, LLC, et al.
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Order to Show Cause Re: Dismissal - Notice of Settlement

CONTINUED to October 15, 2026, at 8:15 a.m. in Courtroom 8, to be heard concurrently with the pending motion to lift stay, enforce settlement agreement, and enter judgment.

23CV-04368 Tony Borba, et al. vs County of Merced, et al.

Case Management Conference

Appearance required.

25CV-07244 Judith Zolna, et al. vs 3169 M Street, LLC, et al.

Motion for Trial Preference Pursuant to CCP Section 36(A)

To be heard in Courtroom 10. Assigned to Judge Bacciarini for all purposes.

26CV-03845 Petition of: Javier Serrano

Order to Show Cause Re: Name Change

Appearance required.

26CV-04275 Petition of: Esthela Salmeron Santos

Order to Show Cause Re: Name Change

Appearance required.

26CV-04318 Petition of: Paul Perez

Order to Show Cause Re: Name Change

Appearance required.

26CV-04697 Noelani Hocson vs Uriel Cibrian

Order to Show Cause Re: Restraining Order

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law & Motion/Petition Name Change
Hon. Jennifer O Trimble
Courtroom 12

1159 G Street, Los Banos

Tuesday, September 22, 2026
1:30 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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Case No.	Title / Description
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26CV-03487	[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]
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Demurrer

The demurrer is OVERRULED. The complaint states facts sufficient to constitute a cause of action.

Defendant is to file a responsive pleading within ten (10) days of this Court's order.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Mark Bacciarini
Courtroom 10

627 W. 21st Street, Merced

Tuesday, September 22, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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25CV-07244	Judith Zolna, et al. vs 3169 M Street, LLC, et al.
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Motion for Trial Preference Pursuant to CCP Section 36(A)

The motion for trial preference is DENIED WITHOUT PREJUDICE.

As an initial matter, the procedural issues raised by Defendant appear to have been addressed by Plaintiff by way of Counsel's supplemental declaration filed on September 15, 2026.

As to the substance of the motion, insufficient evidence has been provided for the court to determine if the health of Plaintiff is such that a trial preference is necessary. (See Code Civ. Proc. § 36, subd. (a)(2).) There is no evidence attached to Counsel's declaration that supports the contention regarding Plaintiff's health or diagnosis. Counsel's statement on information and belief is insufficient.

Accordingly, the motion is denied without prejudice.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Mark Bacciarini
Courtroom 10

627 W. 21st Street, Merced

Tuesday, September 22, 2026
1:30 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
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Case No.	Title / Description
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22CV-03409	Agustin Garcia Hernandez, et al. vs Dan Erickson, et al.
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On the Court's Own Motion, the parties are ordered to attend a Mandatory Settlement Conference on October 12, 2026, at 9:00 a.m. in Courtroom 10.

The plethora of motions discussed below seem to represent a disproportionately excessive litigation effort for a single car v. cattle collision alleging primarily soft tissue injury, currently set for jury trial in Merced County, a county with an 18.4% poverty rate, and with a jury pool primarily comprising blue collar hourly employed workers, many working in agriculture and ranching and many who drive the road on which the accident occurred on a daily basis. When evaluating settlement offers, the parties should consider that if the last known location of the bull involved in the collision, a matter that should be peculiarly within knowledge of Defendants, is not established with some degree of certainty, then Plaintiffs may be entitled to CACI Jury Instruction No. 203 instructing the jury that: "You may consider the ability of each party to provide evidence. If a party provided weaker evidence when it could have provided stronger evidence, you may distrust the weaker evidence." As discussed in connection with the motions below, Defendants cannot simultaneously seek to limit discovery of the last known whereabouts of the bull in question while also seeking to limit discovery of the condition of fencing in locations where the bull may have been kept.

Motion in Limine

Plaintiffs' Motion in Limine Number 1: Exclude Opinions, Comments, or References by Defense Expert Peter Sfakianos M.D. regarding Traumatic Brain Injury or any Neurological or Cognitive Injury.

Denied. A licensed physician is qualified to opine, comment or reference medical conditions. The fact that other physicians may have a specific specialty or specialized experience goes to the weight of the physicians' testimony, not to its admissibility. (See e.g. *Brown v. Colm* (1974) 11 Cal.3d 639, 645-647; *Mann v. Cracchiolo* (1985) 38 Cal.3d 18, 38.) There is no contention that the opinions by Defense Expert Peter Sfakianos M.D. regarding Traumatic Brain Injury or any Neurological or Cognitive Injury fail to meet the standards of Evidence Code § 801(b) ["based on matter...that is of a type that reasonably may be relied upon by an expert in forming an opinion upon the subject to which his testimony relates]. The sole basis for exclusion raised in Motion in Limine Number 1 is that Defense Expert Peter Sfakianos M.D. lacks the qualifications required by Evidence Code § 720 to offer such opinions.

Plaintiffs' Motion in Limine Number 2: Exclude Evidence of Plaintiff's election not to have medical bills satisfied by insurance.

Granted. Plaintiffs bear the burden of proving that medical expenses were actually incurred and were reasonable. (*Pebley v. Santa Clara Organics, LLC* (2018) 22 Cal.App.5th 1266, 1276-1278 [citing *Howell v. Hamilton Meats and Provisions, Inc.* (2011) 52 Cal.4th 541, 555-556; *Bermudez v. Ciolek* (2015) 237 Cal.App.4th 1311, 1330-1331, 1337].) In *Pebley v. Santa Clara Organics, LLC* (2018) 22 Cal.App.5th 1266, 1276-1277, the Court held that the "fact that Pebley chose to pay for those services out of pocket, rather than use his insurance is irrelevant so long as these requirements were met" and that the court did not abuse its discretion by excluding evidence of Pebley's insured status under Evidence Code § 352." (*Id.*)

Plaintiffs' Motion in Limine Number 3: Exclude Pursuant to Evidence Code § 788(c) [Exception for Conviction Dismissed Pursuant to Penal Code § 1203.4] Evidence of Dr. Caton's Personal Legal History, Specifically His Conviction Under Penal Code § 549 [False or Fraudulent Claims Against Insurers]

Granted. The sole evidence that Plaintiffs' Motion in Limine Number 3 seeks to exclude is Dr. Canton's criminal conviction and the sole basis for excluding such conviction is that is that the conviction was dismissed pursuant to Penal Code § 1203.4 and therefore is rendered inadmissible pursuant to Evidence Code § 788(c). In *People v. Field* (1995) 31 Cal.App.4th 1778, 1789-1790, the Court held: "Under the law of Oklahoma, Wilson's Oklahoma conviction has been expunged, and it is no longer a viable felony conviction. Under the law of California, the Oklahoma expunged conviction is not admissible for purposes of impeachment. (*Ibid.* [admissibility of a foreign conviction "is always governed by the law of this state"]; Evid. Code, § 788, subds. (c), (d).)" The Court further held that "Accordingly, we conclude the Truth-in-Evidence provision has no effect on the expungement limitation of Evidence Code section 788." Thus, the evidence of prior conviction is not admissible and Plaintiffs' Motion in Limine Number 3 is Granted as so limited.

Defendant's Opposition does not address the admissibility of the criminal conviction or the applicability of Evidence Code § 788(c). However, Defendant asserts that the amounts billed for medical care by Dr. Canton and others were neither reasonable nor necessary. As discussed in Motion in Limine Number 2, Plaintiffs bear the burden of proving that medical expenses were actually incurred and were reasonable. (*Pebley v. Santa Clara Organics, LLC* (2018) 22 Cal.App.5th 1266, 1276-1278 [citing *Howell v. Hamilton Meats and Provisions, Inc.* (2011) 52 Cal.4th 541, 555-556; *Bermudez v. Ciolek* (2015) 237 Cal.App.4th 1311, 1330-1331, 1337].)

With regard to the reasonableness of medical care and expense, Defendants proffer the fact that Dr. Canton was placed on probation with the Medical Board of California following his conviction for violating Penal Code § 549, and, therefore assert that Defendants may attack the credibility of Dr. Canton concerning any testimony about the reasonableness of the amounts billed using the fact of the Medical Board Probation. While Defendants may raise the fact of the medical board suspension as impeachment because it is not protected by Evidence Code § 788(c), Defendants cannot assert the underlying basis for the medical board suspension, i.e. that the suspension resulted from a conviction for violating Penal Code § 549, because Evidence Code § 788(c) prohibits that fact from being raised to attack the credibility of the witness.

In the event that Defendants offer the fact that Dr. Canton was placed on probation with the Medical Board of California to attack his credibility, Evidence Code § 788(c) does not prevent Plaintiffs from asserting the fact the Medical Board of California probation resulted from a criminal conviction that was later expunged for purposes of rehabilitating Dr. Canton's credibility. Neither party has briefed the extent to which the court should exercise its discretion under Evidence Code § 352 to limit impeachment arising out of the Medical Board of California probation. The Court notes, however, that if a witness other than Dr. Canton testifies concerning whether the medical expenses charged by Dr. Canton were actually incurred and were reasonable, the Medical Board Probation of Dr. Canton is unlikely to be relevant to such testimony.

Plaintiffs' Motion in Limine Number 4: Exclude Human Factors Testimony Pursuant to Evidence Code § 720 Because Defendants' Designated Accident Reconstruction Expert, Daniel M. Desautels, Lacks Sufficient Qualifications to Opine on Human Factors.

Denied Without Prejudice. Plaintiffs' Motion in Limine Number 4 seeks to exclude testimony concerning (1) a driver's perception, (2) a driver's reaction, (3) a driver's expectancy, conspicuity analysis, or nighttime recognition of a large animal on a dark roadway. The sole grounds cited by Motion in Limine Number 4 is Evidence Code § 720 [Qualifications of an Expert witness]. While Plaintiffs assert that "on May 26, 2026, Desautels testified that he intended to offer opinions on subjects related to human factors," Plaintiffs offer no specifics as to what that testimony might be and offer no authority as to why Evidence Code § 720 might preclude whatever expert testimony is to be provided. Furthermore, Plaintiffs offer no authority for the proposition that potential human factors issues such as visibility being greater during daytime than nighttime, or that visibility is better in clear weather rather than foggy or stormy weather, or that limitations on visibility affect the speed at which a reasonable or prudent person having due regard for weather, visibility, the traffic on, and the surface and width of, the highway, or which endangers the safety of other persons or property pursuant to Vehicle Code § 22350 are sufficiently beyond common experience that, pursuant to Evidence Code § 801(a), the testimony of an expert would assist the trier of fact. Accordingly,

Plaintiff's fail to meet their initial burden of establishing any specific evidence to be offered by Mr. Desautels or any other witness concerning issues that might be classified as human factors that is inadmissible.

Plaintiffs' Motion in Limine Number 5: Exclude Testimony Concerning Atmospheric Conditions Present on the Night of the Subject Incident Pursuant to Evidence Code § 350 [Relevance], Evidence Code § 352 [Probative Value Substantially Outweighed By Probability That Its Admission Will Necessitate Undue Consumption of Time, of Create Substantial Danger of Undue Prejudice, of Confusing the Issues, or if Misleading the Jury], Evidence Code § 402 [Procedural for Determining Foundational or Other Preliminary Facts, and Evidence Code § 801 [Opinion Testimony by Expert Witness].

Denied Without Prejudice. California Vehicle Code § 22350, entitled Basic Speed Law, states: "No person shall drive upon a highway at a speed greater than is reasonable or prudent having due regard for weather, visibility, the traffic on, and the surface and width of, the highway, and in no event at a speed which endangers the safety of persons or property." Defendants contend that at the time of the incident, Plaintiff Aime Valdovinos was driving at a speed that violated Vehicle Code § 22350 and, therefore, is subject to the affirmative defense of comparative negligence. The text of Vehicle Code § 22350 requires that the trier of fact consider whether the driver had due regard for weather and visibility, the very atmospheric conditions that Motion in Limine Number 5 seeks to exclude. Thus, the Objection pursuant to Evidence Code § 350 [Relevance] and Evidence Code § 352 [Probative Value Substantially Outweighed By Probability That Its Admission Will Necessitate Undue Consumption of Time, of Create Substantial Danger of Undue Prejudice, of Confusing the Issues, or if Misleading the Jury] are overruled. The objection under Evidence Code § 402, foundation, is overruled without prejudice to the making of a specific foundation objection to any evidence offered concerning the atmospheric conditions at the time of the accident. The objection pursuant to Evidence Code § 801 is overruled for failure to establish that limitations on visibility affecting the speed at which a reasonable or prudent person having due regard for weather, visibility, the traffic on, and the surface and width of, the highway, or which endangers the safety of other persons or property pursuant to Vehicle Code § 22350 are sufficiently beyond common experience that, pursuant to Evidence Code § 801(a), the testimony of an expert would assist the trier of fact. Since each objection is overruled, Motion in Limine Number 5 is Denied.

Defendants' Motion in Limine Number 1: Exclude Evidence showing (1) the conditions and managements of Defendants' real property other than the parcel where the bull struck by Plaintiffs' automobile was pastured; (2) the management of Defendants' cattle pastured on real property other than the parcel where the bull struck by Plaintiff's automobile was pastured; (3) the condition and management of real property shared with Time and Betty Erickson; and (4) references to Erickson Ranch, on the grounds that such evidence is not relevant (Evidence Code § 350) and on the grounds that such relevance would unnecessarily consume time and confuse the issues (Evidence Code § 352)..

Granted to the extent there is no dispute concerning the parcel on which the bull struck by Plaintiffs' automobile was pastured immediately prior to the time of the accident. If there is a dispute as to the parcel on which the bull struck by Plaintiffs' automobile was pastured immediately prior to the time of the accident, the Motion is Denied with regard to each parcel at which the evidence shows that the bull may have been pastured immediately prior to the time of the accident but is Granted with regard other parcels.

Defendants' potential liability under theories of (1) negligence, (2) premises liability, (3) negligence per se, (4) strict liability, or (5) public nuisance is only affected by the condition of parcels that the evidence establishes was, or might have been, the parcel on which the bull was pastured immediately prior to the accident because the ability of the bull to leave other parcels was not a proximate cause of the accident in question. See the discussion below in connection with Defendants' Motion in Limine Number 5. If the evidence establishes that Defendants did not know or keep records indicated where the bull was being pastured, then there is no basis for excluding evidence concerning the management of locations where the bull may have been pastured immediately prior to the time of the accident.

Defendants' Motion in Limine Number 2: Exclude the Point of View Animation Prepared for Plaintiffs' Retained Human Factors Expert, Dr. Joseph Cohen.

Denied unless there is no competent evidence that the animation is a fair and accurate representation of the evidence to which it relates. (See e.g. *People v. Duenas* (2012) 55 Cal.4th 1, 20.) The fact that there is a dispute concerning the credibility of the evidence to which the animation relates, goes to the weight of the evidence, not its admissibility. The fact that different or contradictory evidence may be provided than that on which the animation is based does not preclude admissibility of an animation that is a fair and accurate representation of the specific evidence on which the animation is based.

Defendants' Unnumbered Motion in Limine Number 3 [Labeled as Motion in Limine Number 3 in Defendants' List of Motions in Limine and Plaintiffs' Opposition]: Exclude (1) Food and Agriculture Code § 16902; (2) City of Merced Municipal Code §§ 6.04.040, 6.04.080, and 6.44.290; and (3) Merced County Code sections 7.04.310, 7.04.080, and 7.04.090.

The Portion of Defendants' Motion in Limine Number 3 Seeking to Exclude Mention of Food and Agricultural Code § 16902 or the wording of such statute is Granted pursuant to Agricultural Code § 16904. The portion of Motion in Limine Number 3 Seeking to Exclude Mention of City of Merced Municipal Code §§ 6.04.040, 6.04.080, and 6.44.290 is Granted, absent evidence that the bull that was struck by Plaintiffs' vehicle was pastured or located within the City Limits of Merced at the time of the accident. The Portion of Motion in Limine Number 3 Seeking to Exclude Mention of Merced County Code sections 7.04.310, 7.04.080, and 7.04.090 is Denied.

In *Spates v. Dameron Hospital Assn.* (2003) 114 Cal.App.4th 208, 218, the court held: "The negligence per se doctrine, as codified in Evidence Code section 669, creates a presumption of negligence if four elements are established...."

Food and Agricultural Code § 16902 provides: "A person that owns or controls the possession of any livestock shall not willfully or negligently permit any of the livestock to stray upon, or remain unaccompanied by a person in charge or control of the livestock upon, a public highway, if both sides of the highway are adjoined by property which is separated from the highway by a fence, wall, hedge, sidewalk, curb, lawn, or building." Food and Agricultural Code § 16902 provides: "In any civil action which is brought by the owner, driver, or occupant of a motor vehicle, or by their personal representatives or assignees, or by the owner of livestock, for damages which are caused by collision between any motor vehicle and any domestic animal on a highway, there is no

presumption or inference that the collision was due to negligence on behalf of the owner or the person in possession of the animal.”

A cattle owner who negligently fails to keep his cattle from straying upon a highway may be held liable in a civil action for damages arising from a collision with his livestock. (*Shively v. Dry Creek Cattle Company* (1994) 29 Cal.App.4th 1620, 1628 [citing *Summers v. Parker* (1953) 119 Cal.App.2d 214, 216; *Jackson v. Hardy* (1945) 70 Cal.App.2d 6, 14].) Food and Agricultural Code § 16902 does not state a basis for negligence and Food and Agricultural Code § 16904 expressly provides that the statute does not create any presumption or inference that a collision between a motor vehicle and domestic cattle on a highway was due to the negligence of the owner. Accordingly, Food and Agricultural Code § 16902 is irrelevant to whether Defendants were negligent and cannot be used to create a presumption of negligence pursuant to the negligence per se doctrine set forth in Evidence Code § 669 because the Legislature has expressly rejected any such presumption. Accordingly, the portion of Defendants’ Motion in Limine Number 3 to Exclude Mention of Food and Agricultural Code § 16902 or the wording of such statute is Granted pursuant to Agricultural Code § 16904.

Absent evidence that the bull that was struck by Plaintiffs’ vehicle was pastured or located within the City Limits of Merced at the time of the accident, the ordinances of the City of Merced are irrelevant to this action. Accordingly, the portion of Motion in Limine Number 3 Seeking to Exclude Mention of City of Merced Municipal Code §§ 6.04.040, 6.04.080, and 6.44.290 is Granted,

The Portion of Motion in Limine Number 3 Seeking to Exclude Mention of Merced County Code sections 7.04.310, 7.04.080, and 7.04.090 is Denied. This portion of Defendants’ Motion in Limine Number 3 is not based on statutory language and concedes that the accident occurred within the County of Merced, but asserts that the failure of the Complaint to cite any Merced County Ordinance and the failure of Plaintiffs to identify a County Ordinance in discovery precludes Merced County Code sections 7.04.310, 7.04.080, and 7.04.090 from being used to establish a basis for the negligence per se presumption. There has been no showing that Defendants have been prejudiced by such omissions. Accordingly, this Court exercises its discretion to Deny the Portion of Motion in Limine Number 3 Seeking to Exclude Mention of Merced County Code sections 7.04.310, 7.04.080, and 7.04.090 because the fact that such ordinances were not identified in the complaint or in discovery responses and not been shown to have prejudiced Defendants.

Neither party addresses whether Mention of Merced County Code sections 7.04.310, 7.04.080, and 7.04.090 satisfy the negligence per se doctrine set forth in Evidence Code section 669 and *Spates v. Dameron Hospital Assn.* (2003) 114 Cal.App.4th 208, 218. Whether or not that issue goes to the jury will depend on the evidence provided at trial and any pretrial or trial motions brought by the parties.

Defendants’ Motion in Limine Number 4: Exclude the expert testimony given by Robert E. Canton M.D., including any opinion testimony to be at trial by Dr. Canton as to whether any Plaintiff suffered injury as a result of the motor vehicle accident that occurred on or about December 17, 2021, or any Legal Reports or Notes prepared by Dr. Canton for each Plaintiff on the grounds that Dr. Canton qualifies as a retained expert, but was not disclosed as such in Plaintiffs’ expert designation, but instead was disclosed as a non-retained expert/treating physician.

Denied without prejudice to any objection to testimony by Dr. Canton that did not arise from his role as a treating physician. There does not appear to be any dispute that Dr. Canton performed some treatment and his disclosure as a non-retained expert permits him to testify concerning issues that came to his attention in his role as a treating physician, including whether any Plaintiff suffered injury as a result of the motor vehicle accident that occurred on or about December 17, 2021, as opposed to some other injury or illness. Defendants' reliance on *Dozier v. Shapiro* (2011) 199 Cal.App.4th 1509, 1521 ignores the fact that the physician in that case, a Dr. Zeegan who was disclosed as a non-retained treating physician, was permitted to testify as to opinions he gave during his deposition that arose from his role as a treating physician. In *Dozier v. Shapiro*, Dr. Zeegan was, after his deposition, provided with additional information and asked at trial to provide additional opinions that were excluded because Dr. Zeegan was not disclosed as a retained expert and did not testify concerning those opinions at his deposition. The label placed on Dr. Canton's notes is not determinative as to whether that information was obtained in the course of his treatment, or by information provided outside the course of treatment given to the Plaintiffs. There is no assertion that Dr. Canton will be offering any opinion not disclosed in his deposition.

Defendants' Motion in Limine Number 5: Exclude any opinion testimony by Plaintiffs' retained expert, Mr. Ray K. Miller, on the grounds that his opinions lack the sound basis required by Evidence Code § 801, but was based on conjecture and speculation.

Denied without prejudice to any objection that a specific opinion lacks an appropriate foundation. There is no contention that Mr. Ray K. Miller is not qualified as an expert in ranching and livestock management, and even if this Court were to assume that some of his deposition testimony cited in the Defendants' Motion in Limine Number 5 is speculation, this is not a basis for excluding his testimony in its entirety, the sole remedy sought in Defendants' Motion in Limine Number 5.

As noted in connection with the ruling on Defendants' Motion in Limine Number 1 above, the scope of relevant evidence depends, in part, on whether the admissible evidence reveals a dispute concerning the parcel on which the bull struck by Plaintiffs' automobile was pastured immediately prior to the time of the accident. Defendant argues that "Instead of specifying any evidence to show how the bull got out of the pasture on the property leased by the Ericksons, [Mr. Ray K. Miller] referred to the evidence of the cow walking on the property where Mr. Bernie Camarillo resided. He proffered a theory that the full was actually not pastured on Defendants' property, but had been kept at Mr. Camarillo's property. He then conjectured that there could have been a contract between them and that the bull escaped from Mr. Camarillo's property, not Defendants'." (Defendants' Motion in Limine Number 5 at Page 12:24-13:1.) If there is no evidence supporting the opinion that the bull may have been pastured where Bernie Camarillo resided other than that articulated by Defendants' Motion in Limine Number 5, then that opinion would appear to be based on speculation, not admissible evidence. However, it is not a basis for excluding an opinion concerning the adequacy of fencing that was personally examined by Mr. Ray K. Miller on parcels where competent evidence establishes that the bull that was struck by Plaintiffs' vehicle was pastured. The court notes that Plaintiff's Opposition to Motion in Limine Number 5 lists "Failure to keep ranch journals" as a category of opinion Mr. Ray K. Miller provided as evidence of negligent ranch management. If, in fact, the evidence establishes that the existing ranch management was such that nobody knew the actual location of where the bull was being pastured, a trier of fact could determine that the bull's presence on the highway at the

time of the accident was a proximate result of negligent management practices observed by Mr. Ray K. Miller. If it was equally possible that the bull was pastured at ten different locations, that evidence would be relevant to the scope of Motion in Limine Number 1.

Defendants' Motion in Limine Number 6: Exclude Testimony of Plaintiffs' Supplemental Expert, David Martinez on medical billing, coding, reimbursement methodologies, reasonableness and necessity of charges, and evaluation of past and future medical expenses on the grounds that such expert testimony is outside the scope of permissible supplemental expert disclosure provided in Code of Civil Procedure § 2034.280(a) as interpreted by case law such as *Fairfax v. Lords* (2006) 138 Cal.App.4th 1019, 1025-1026, because the need for such testimony should have been anticipated by Plaintiffs when they made their initial disclosure. .

Defendants' Motion in Limine Number 6: Exclude Testimony of Plaintiffs' Supplemental Expert, David Martinez on medical billing, coding, reimbursement methodologies, reasonableness and necessity of charges, and evaluation of past and future medical expenses on the grounds that such expert testimony is outside the scope of permissible supplemental expert disclosure provided in Code of Civil Procedure § 2034.280(a) is Granted as to designation of a coding expert and a reimbursement methodologies and Denied as to designation of an expert to opine on usual, customary, and reasonable charges or medical billing reasonableness.

Code of Civil Procedure § 2034.280 permits a party, within 20 days after the expert exchange, serve a supplemental expert designation who will address subjects covered by the adverse party's expert. In their initial disclosure, Defendants designated an expert to opine on usual, customary, and reasonable charges and medical reasonableness; but Plaintiffs' initial disclosure did not designate a similar expert. Plaintiffs then made a timely supplemental designation that disclosed an expert to testify on medical billing, coding, reimbursement methodologies, reasonableness and necessity of charges, and evaluation of past and future medical expenses.

On the initial disclosure, Plaintiffs disclosed Dr. Babak Samimi to offer opinions on (1) Plaintiff's' medical condition and causation, (2) Plaintiffs' prognosis, (3) Reasonableness and necessity of medical care, and Reasonableness and necessity of past and future medical expenses. Plaintiffs did not disclose an expert to opine on usual, customary, and reasonable charges or medical billing reasonableness. Neither party's initial disclosure specifically designated a coding expert or a reimbursement methodologies expert. Thus, Plaintiffs' supplemental designation of an expert to opine on usual, customary, and reasonable charges or medical billing reasonableness is related to topics that were not in Plaintiff's initial disclosure but were contained in Defendants' initial disclosure, and Plaintiffs' supplemental designation of a coding expert and a reimbursement methodologies expert exceeded the scope of the initial designations by Defendants.

In *Fairfax v. Lords* (2006) 138 Cal.App.4th 1019, 1025-1026, the court determined that the defendants had every reason to anticipate that the plaintiffs would designate and expert on whether Defendant complied with the standard of care, should have made such designation in their initial disclosure, and therefore were barred by adding such an expert in a supplemental designation. Here, Plaintiffs initially disclosed an expert on the Reasonableness and necessity of medical care, and Reasonableness and necessity of past and future medical expenses, but did not initially disclose an expert on usual, customary, and reasonable charges or medical billing reasonableness, a related but

different area of expertise. On the other hand, neither party made an initial disclosure of a coding expert or a reimbursement methodologies expert, so the supplemental disclosure of experts on those areas of expertise constitute an attempt to amend Plaintiffs' initial disclosure, not an attempt to designate an expert having the same area of expertise as Defendants' initially disclosed experts.

Accordingly, Defendants' Motion in Limine Number 6 is Granted as to designation of a coding expert and a reimbursement methodologies expert and is Denied as to designation of an expert to opine on usual, customary, and reasonable charges or medical billing reasonableness.

Defendants' Motion in Limine Number 7: Prohibit Plaintiffs From Introducing Their Retained Experts Reports Into Evidence, Including Reports disclosed in the form of PowerPoint Presentations on the grounds that such reports are Hearsay (Evidence Code § 1200.

This Court's Register of Actions Does Not Indicate That Plaintiffs filed any opposition to Defendants' Motion in Limine Number 7 Prohibiting Plaintiffs From Introducing Their Retained Experts Reports Into Evidence, Including Reports disclosed in the form of PowerPoint Presentations on the grounds that such reports are Hearsay (Evidence Code § 1200. Since Defendants' Motion in Limine Number 7 is unopposed and appears to state an appropriate evidentiary objection, Defendants' Motion in Limine Number 7 is Granted.

Defendants' Motion in Limine Number 8: Exclude The Traffic Crash Report on the grounds that admission of such reports violates Vehicle Code § 20013 and are Hearsay (Evidence Code § 1200.

This Court's Register of Actions Does Not Indicate That Plaintiffs filed any opposition to Defendants' Motion in Limine Number 8 Exclude The Traffic Crash Report on the grounds that admission of such reports violates Vehicle Code § 20013 and are Hearsay (Evidence Code § 1200. Since Defendants' Motion in Limine Number 8 is unopposed and appears to state an appropriate evidentiary objection, Defendants' Motion in Limine Number 8 is Granted.

Defendants' Motion in Limine Number 9: Exclude Evidence of Undisclosed Wage on the grounds that no such information has been disclosed in response to Form Interrogatories, Deposition Testimony, and Supplemental Interrogatories propounded by Defendants.

This Court's Register of Actions Does Not Indicate That Plaintiffs filed any opposition to Defendants' Motion in Limine Number 9 Excluding Evidence of Undisclosed Wage Losses on the grounds that no such information has been disclosed in response to Form Interrogatories, Deposition Testimony, and Supplemental Interrogatories propounded by Defendants. Since Defendants' Motion in Limine Number 9 is unopposed and appears to state an appropriate evidentiary objection, Defendants' Motion in Limine Number 9 is Granted.

Defendants' Motion in Limine Number 10: Exclude Evidence of Property Loss on the grounds that Plaintiff was not the registered owner of the Honda Accord she identified in response to discovery propounded by Defendants and because no other Plaintiff disclosed any property loss in response to discovery propounded by Defendants.

This Court's Register of Actions Does Not Indicate That Plaintiffs filed any opposition to Defendants' Motion in Limine Number 10 Exclude Evidence of Property Loss on the grounds that Plaintiff was not the registered owner of the Honda Accord she identified in response to discovery propounded by Defendants and because no other Plaintiff disclosed any property loss in response to discovery propounded by Defendants. Since Defendants' Motion in Limine Number 10 is unopposed and appears to state an appropriate evidentiary objection, Defendants' Motion in Limine Number 9 is Granted.

Motion to Compel Further Responses to Special Interrogatories, Set Two; Request for Sanctions in the Amount of \$1,577.97

Special Interrogatory Number 93 [State the total number of livestock maintained by you at the subject ranch at the time of the incident] **Motion to Compel Further Response Granted. The objection that the request is unreasonably cumulative or duplicative of past interrogatory requests or deposition testimony, is obtainable from other sources, that is more convenient, less burdensome and less expensive, that the term subject ranch lacks specificity, and is vague ambiguous, overbroad, unintelligible, that expecting the responding party to interpret a vague and unspecific term is harassing and overly burdensome, that the term livestock is overbroad, that the term you is vague ambiguous and overbroad, and that the interrogatory seeks information outside the scope of discovery, is not relevant and not reasonably calculated to lead to the discovery of admissible evidence and is harassing and oppressive are Overruled. Defendant Erickson is ordered to conduct a diligent search and make reasonable inquiry and then, by November 2, 2029, serve a verified full and complete supplemental response without objections to Interrogatory Number 93.**

Special Interrogatory Number 94 [State whether the subject bull was located on the subject ranch immediately prior to the incident] **Motion to Compel Further Response Granted. The objection that the request is unreasonably cumulative or duplicative of past interrogatory requests or deposition testimony, is obtainable from other sources, that is more convenient, less burdensome and less expensive, that the term subject ranch lacks specificity, and is vague ambiguous, overbroad, unintelligible, that expecting the responding party to interpret a vague and unspecific term is harassing and overly burdensome, that the term livestock is overbroad, and that the term you is vague ambiguous and overbroad are Overruled. Defendant Erickson is ordered to conduct a diligent search and make reasonable inquiry and then, by November 2, 2029, serve a verified full and complete supplemental response without objections to Interrogatory Number 94.**

Special Interrogatory Number 113 [For each occasion from ten (10) years prior to the incident through and including the date of the incident in which you received notice that any fence enclosing the subject ranch or any pasture under your control was broken, damaged or compromised, describe the actions you took to repair or address the fence condition] **Motion to Compel Further Response Granted. The objection that the request is unreasonably cumulative or duplicative of past interrogatory requests or deposition testimony, is obtainable from other sources, that is more convenient, less burdensome and less expensive, that the term subject ranch lacks specificity, and is vague ambiguous, overbroad, unintelligible, that expecting the responding party to interpret a vague and unspecific term is harassing and overly burdensome, that the term you is vague ambiguous and overbroad, and that the term incident is vague, ambiguous, compound,**

and overbroad are Overruled. Defendant Erickson is ordered to conduct a diligent search and make reasonable inquiry and then, by November 2, 2029, serve a verified full and complete supplemental response without objections to Interrogatory Number 113.

Special Interrogatory Number 114 [State each occasion from ten (10) years prior to the incident through and including the date of the incident in which you received notice that any fence enclosing the subject ranch or any pasture under your control was broken, damaged or compromised] **Motion to Compel Further Response Granted. The objection that the request is unreasonably cumulative or duplicative of past interrogatory requests or deposition testimony, is obtainable from other sources, that is more convenient, less burdensome and less expensive, that the term subject ranch lacks specificity, and is vague ambiguous, overbroad, unintelligible, that expecting the responding party to interpret a vague and unspecific term is harassing and overly burdensome, that the term you is vague ambiguous and overbroad, and that the term incident is vague, ambiguous, compound, and overbroad are Overruled. Defendant Erickson is ordered to conduct a diligent search and make reasonable inquiry and then, by November 2, 2029, serve a verified full and complete supplemental response without objections to Interrogatory Number 114.**

Special Interrogatory Number 119 [State each occasion from ten (10) years prior to the incident through and including the date of the incident on which you reported livestock as missing to the California Department of Food & Agriculture] **Motion to Compel Further Response Granted. The objection that the request is unreasonably cumulative or duplicative of past interrogatory requests or deposition testimony, is obtainable from other sources, that is more convenient, less burdensome and less expensive, that the term livestock is overbroad and not limited in scope or time that the term you is vague ambiguous and overbroad, and that the term incident is vague, ambiguous, compound, and overbroad, and that the request seeks information outside the scope of discovery that is not relevant or not reasonably calculated to lead to the discovery of admissible evidence and is harassing, are Overruled. Defendant Erickson is ordered to conduct a diligent search and make reasonable inquiry and then, by November 2, 2029, serve a verified full and complete supplemental response without objections to Interrogatory Number 119.**

Special Interrogatory Number 120 [State the facts surrounding the livestock you reported missing to the California Department of Food & Agriculture in February 2021] **Motion to Compel Further Response Granted. The objection that the request is unreasonably cumulative or duplicative of past interrogatory requests or deposition testimony, is obtainable from other sources, that is more convenient, less burdensome and less expensive, that the term livestock is overbroad and not limited in scope or time or location, that the term you is vague ambiguous and overbroad, and that the request seeks information outside the scope of discovery that is not relevant or not reasonably calculated to lead to the discovery of admissible evidence and is harassing, are Overruled. Defendant Erickson is ordered to conduct a diligent search and make reasonable inquiry and then, by November 2, 2029, serve a verified full and complete supplemental response without objections to Interrogatory Number 120.**

Special Interrogatory Number 121 [State whether you located or recovered livestock reported missing in February 2021, and if so, where and how] **Motion to Compel Further Response Granted. The objection that the request is unreasonably cumulative or duplicative of past interrogatory requests or deposition testimony, is obtainable from other sources, that is more convenient, less burdensome and less expensive, that the term livestock is**

overbroad and not limited in scope or time or location, that the term you is vague ambiguous and overbroad, and that the request seeks information outside the scope of discovery that is not relevant or not reasonably calculated to lead to the discovery of admissible evidence and is harassing, are Overruled. Defendant Erickson is ordered to conduct a diligent search and make reasonable inquiry and then, by November 2, 2029, serve a verified full and complete supplemental response without objections to Interrogatory Number 121.

Special Interrogatory Number 130 [Describe what you contend constitutes a proper gate for keeping livestock confined] **Motion to Compel Further Response Granted.** The objection that the request is unreasonably cumulative or duplicative of past interrogatory requests or deposition testimony, is obtainable from other sources, that is more convenient, less burdensome and less expensive, that the term you is vague ambiguous and overbroad, that the term livestock is overbroad and not limited in scope or time or location, and that the request seeks information outside the scope of discovery that is not relevant or not reasonably calculated to lead to the discovery of admissible evidence and is harassing, are Overruled. Defendant Erickson is ordered to conduct a diligent search and make reasonable inquiry and then, by November 2, 2029, serve a verified full and complete supplemental response without objections to Interrogatory Number 130.

Special Interrogatory Number 132 [State whether there is access from any pasture area under your control to property owned or controlled by Mr. Camarillo, and describe what separates those properties] **Motion to Compel Further Response Granted.** The objection that the request is unreasonably cumulative or duplicative of past interrogatory requests or deposition testimony, is obtainable from other sources, that is more convenient, less burdensome and less expensive, that the term access and separates properties are vague ambiguous and overbroad, and compound, and that the request seeks information outside the scope of discovery that is not relevant or not reasonably calculated to lead to the discovery of admissible evidence and is harassing, are Overruled. Defendant Erickson is ordered to conduct a diligent search and make reasonable inquiry and then, by November 2, 2029, serve a verified full and complete supplemental response without objections to Interrogatory Number 132.

Special Interrogatory Number 133 [State any and all persons with whom you shared use or access to the pasture area where the subject bull was kept on the date of the incident] **Motion to Compel Further Response Granted.** The objection that the request is unreasonably cumulative or duplicative of past interrogatory requests or deposition testimony, is obtainable from other sources, that is more convenient, less burdensome and less expensive, harassing and an abuse of the discovery process, that the interrogatory seeks facts not in evidence, and that the request seeks information outside the scope of discovery that is not relevant or not reasonably calculated to lead to the discovery of admissible evidence and is harassing, are Overruled. Defendant Erickson is ordered to conduct a diligent search and make reasonable inquiry and then, by November 2, 2029, serve a verified full and complete supplemental response without objections to Interrogatory Number 133.

Special Interrogatory Number 135 [State any livestock you reported missing prior to the incident other than the livestock reported missing in February 2021] **Motion to Compel Further Response Granted.** The objection that the request is unreasonably cumulative or duplicative of past interrogatory requests or deposition testimony, is obtainable from other sources, that is more convenient, less burdensome and less expensive, harassing

and an abuse of the discovery process, that the term you is vague, ambiguous, and overbroad, and that the request seeks information outside the scope of discovery that is not relevant or not reasonably calculated to lead to the discovery of admissible evidence and is harassing, that the term livestock is vague, ambiguous, and overbroad, that the interrogatory is not limited to time or scope or location, that the term incident is vague, ambiguous or overbroad, that the term reported is vague, ambiguous and overbroad, are Overruled. Defendant Erickson is ordered to conduct a diligent search and make reasonable inquiry and then, by November 2, 2029, serve a verified full and complete supplemental response without objections to Interrogatory Number 135.

Special Interrogatory Number 143 [State all prior instances in which you were contacted to retrieve livestock that had escaped from property under your control] **Motion to Compel Further Response Granted.** The objection that the request is unreasonably cumulative or duplicative of past interrogatory requests or deposition testimony, is obtainable from other sources, that is more convenient, less burdensome and less expensive, harassing and an abuse of the discovery process, that the interrogatory is overbroad, harassing and presents an undue burden by requesting all prior instances, that the term you is vague, ambiguous, and overbroad, and that the request seeks information outside the scope of discovery that is not relevant or not reasonably calculated to lead to the discovery of admissible evidence and is harassing, that the term livestock is vague, ambiguous, and overbroad, and that the interrogatory is not limited as to time, scope or location, are Overruled. Defendant Erickson is ordered to conduct a diligent search and make reasonable inquiry and then, by November 2, 2029, serve a verified full and complete supplemental response without objections to Interrogatory Number 143.

Special Interrogatory Number 157 [State whether you possess or possessed any written lease agreement relating to the subject bull] **Motion to Compel Further Response Granted.** The objection that the request is unreasonably cumulative or duplicative of past interrogatory requests or deposition testimony, is obtainable from other sources, that is more convenient, less burdensome and less expensive, harassing and an abuse of the discovery process, that the term you is vague, ambiguous, and overbroad, and that the request seeks information outside the scope of discovery that is not relevant or not reasonably calculated to lead to the discovery of admissible evidence and is harassing, that the term livestock is vague, ambiguous, and overbroad, that the interrogatory is not limited to time or scope or location, and that the request is harassing, oppressive, and an abuse of the discovery process, are Overruled. Defendant Erickson is ordered to conduct a diligent search and make reasonable inquiry and then, by November 2, 2029, serve a verified full and complete supplemental response without objections to Interrogatory Number 157.

Special Interrogatory Number 161 [Describe the procedures you follow when checking on bulls kept on pasture under your control] **Motion to Compel Further Response Granted.** The objection that the request is unreasonably cumulative or duplicative of past interrogatory requests or deposition testimony, is obtainable from other sources, that is more convenient, less burdensome and less expensive, harassing and an abuse of the discovery process, that the term you is vague, ambiguous, and overbroad, and that the request seeks information outside the scope of discovery that is not relevant or not reasonably calculated to lead to the discovery of admissible evidence and is harassing, are Overruled. Defendant Erickson is ordered to conduct a diligent search and make reasonable inquiry and then, by November 2, 2029, serve a verified full and complete supplemental response without objections to Interrogatory Number 161.

Special Interrogatory Number 167 [State whether any person other than you had responsibility for the care, custody, or control of the subject bull at any time within 30 days prior to the incident] **Motion to Compel Further Response Granted.** The objection that the request is unreasonably cumulative or duplicative of past interrogatory requests or deposition testimony, is obtainable from other sources, that is more convenient, less burdensome and less expensive, harassing and an abuse of the discovery process, that the term you is vague, ambiguous, and overbroad, and that the request seeks information outside the scope of discovery that is not relevant or not reasonably calculated to lead to the discovery of admissible evidence and is harassing, that the term incident is vague and ambiguous and overbroad, and that the interrogatory is vague, ambiguous or overbroad as stated, are Overruled. Defendant Erickson is ordered to conduct a diligent search and make reasonable inquiry and then, by November 2, 2029, serve a verified full and complete supplemental response without objections to Interrogatory Number 167.

Special Interrogatory Number 168 [Identify each person who had responsibility for the care, custody, or control of the subject at any time within 30 days prior to the incident] **Motion to Compel Further Response Granted.** The objection that the request is unreasonably cumulative or duplicative of past interrogatory requests or deposition testimony, is obtainable from other sources, that is more convenient, less burdensome and less expensive, harassing and an abuse of the discovery process, and that the request seeks information outside the scope of discovery that is not relevant or not reasonably calculated to lead to the discovery of admissible evidence and is harassing, that the term incident is vague and ambiguous and overbroad, and that the interrogatory is vague, ambiguous or overbroad as stated, are Overruled. Defendant Erickson is ordered to conduct a diligent search and make reasonable inquiry and then, by November 2, 2029, serve a verified full and complete supplemental response without objections to Interrogatory Number 168.

Plaintiffs' Motion for Sanctions is GRANTED. Defendant Erickson is ordered to pay monetary sanctions to Plaintiff in the amount of \$1,577.97 on or before November 2, 2029. Defendant's request for sanctions is **DENIED**.

Motion to Compel Further Responses to Requests for Admissions, Set Two; Request for Sanctions in the amount of \$1,577.97

Request for Admission Number 29 [Admit the Subject Bull was under your control prior to the occurrence of the Incident]. **Motion to Compel Further Response Granted.** Defendant's objections that the request is vague, ambiguous, overbroad, and compound are Overruled. The objection that the term Control is vague and ambiguous, ambiguous or overbroad is Overruled. The objection that the Request is not limited as to time or scope is Overruled. The objection that the term incident defined as the events occurring on or about December 17, 2021 is vague, ambiguous or compound is Overruled. Defendant Erickson is ordered to conduct a diligent search and make reasonable inquiry and then, by November 2, 2029, serve a verified supplemental response without objections to Request for Admission Number 29 that either (1) unambiguously admits the Request, (2) denies the request, (3) admits so much of the request as can be admitted and denies the rest, or (4) states that Defendant Dan Erickson possesses insufficient information to either admit or deny the Request and therefore denies the request.

Request for Admission Number 30 [Admit the Subject Bull was located on the subject ranch prior to the incident]. **Motion to Compel Further Response Granted. Defendant's objection that request seeks information already provided by previous responses and is unreasonably cumulative, duplicative and harassing is Overruled. The objection that the term the subject ranch lacks specificity, and is vague, ambiguous, overbroad or unintelligible is Overruled. The second objection that the request is vague and unspecific and therefore harassing and overly burdensome is Overruled. The objection that the term incident defined as the events occurring on or about December 17, 2021 is vague, ambiguous or compound is Overruled. The objection that the request is vague and ambiguous as it is not limited in time and scope is Overruled. Defendant Erickson is ordered to conduct a diligent search and make reasonable inquiry and then, by November 2, 2029, serve a verified supplemental response without objections to Request for Admission Number 30 that either (1) unambiguously admits the Request, (2) denies the request, (3) admits so much of the request as can be admitted and denies the rest, or (4) states that Defendant Dan Erickson possesses insufficient information to either admit or deny the Request and therefore denies the request.**

Request for Admission Number 31 [Admit the Subject Bull was on pasture under your control prior to the incident]. **Motion to Compel Further Response Granted. Defendant's objection that the request seeks information already provided by previous requests and is unreasonably cumulative, duplicative and harassing is Overruled. The objection that the term You or Your is vague, ambiguous, overbroad, and compound is Overruled. The objection that the term incident defined as the events occurring on or about December 17, 2021, is vague, ambiguous or compound is Overruled. The objection that the term pasture is vague, ambiguous, overbroad, and unintelligible is Overruled. Defendant Erickson is ordered to conduct a diligent search and make reasonable inquiry and then, by November 2, 2029, serve a verified supplemental response without objections to Request for Admission Number 31 that either (1) unambiguously admits the Request, (2) denies the request, (3) admits so much of the request as can be admitted and denies the rest, or (4) states that Defendant Dan Erickson possesses insufficient information to either admit or deny the Request and therefore denies the request.**

Request for Admission Number 32 [Admit the Subject Bull was outside the boundaries of the subject ranch at the time of the incident]. **Motion to Compel Further Response Granted. The objection that the term the subject ranch lacks specificity, and is vague, ambiguous, overbroad or unintelligible is Overruled. Defendant's objection that the request seeks information already provided by previous requests and is unreasonably cumulative, duplicative and harassing is Overruled. The objection that the vague and ambiguous term is harassing and overly burdensome is Overruled. The objection that the term incident defined as the events occurring on or about December 17, 2021, is vague, ambiguous or compound is Overruled. The objection that the term pasture is vague, ambiguous, overbroad, and unintelligible is Overruled. Defendant Erickson is ordered to conduct a diligent search and make reasonable inquiry and then, by November 2, 2029, serve a verified supplemental response without objections to Request for Admission Number 32 that either (1) unambiguously admits the Request, (2) denies the request, (3) admits so much of the request as can be admitted and denies the rest, or (4) states that Defendant Dan Erickson possesses insufficient information to either admit or deny the Request and therefore denies the request.**

Request for Admission Number 33 [Admit that you were responsible for confining the Subject Bull prior to the incident]. **Motion to Compel Further Response Granted. The objection that**

the term You or Your is vague, ambiguous, overbroad, and compound is Overruled. The objection that the term confining is not defined is Overruled. The objection that the term prior to the incident is not limited as to scope or time is Overruled. The objection that the term incident defined as the events occurring on or about December 17, 2021, is vague, ambiguous or compound is Overruled. Defendant's objection that the request seeks information already provided by previous requests and is unreasonably cumulative, duplicative and harassing is Overruled. Defendant Erickson is ordered to conduct a diligent search and make reasonable inquiry and then, by November 2, 2029, serve a verified supplemental response without objections to Request for Admission Number 33 that either (1) unambiguously admits the Request, (2) denies the request, (3) admits so much of the request as can be admitted and denies the rest, or (4) states that Defendant Dan Erickson possesses insufficient information to either admit or deny the Request and therefore denies the request.

Request for Admission Number 34 [Admit that Livestock owned or controlled by you left the subject ranch on at least one occasion prior to the incident]. **Motion to Compel Further Response Granted.** The objection that the term the subject ranch lacks specificity, and is vague, ambiguous, overbroad or unintelligible is Overruled. The objection that the vague and ambiguous term is harassing and overly burdensome is Overruled. The objection that the term You or Your is vague, ambiguous, overbroad, and compound is Overruled. The objection that the term confining is not defined is Overruled. The objection that the term prior to the incident is not limited as to scope or time is Overruled. The objection that the term incident defined as the events occurring on or about December 17, 2021, is vague, ambiguous or compound is Overruled. Defendant's objection that the request seeks information already provided by previous requests and is unreasonably cumulative, duplicative and harassing is Overruled. Defendant Erickson is ordered to conduct a diligent search and make reasonable inquiry and then, by November 2, 2029, serve a verified supplemental response without objections to Request for Admission Number 34 that either (1) unambiguously admits the Request, (2) denies the request, (3) admits so much of the request as can be admitted and denies the rest, or (4) states that Defendant Dan Erickson possesses insufficient information to either admit or deny the Request and therefore denies the request.

Request for Admission Number 42 [Admit that Prior to the Incident, you reported Livestock owned or controlled by you as missing to the California Department of Food Livestock owned or controlled by you as missing to the California Department of Food & Agriculture] **Motion to Compel Further Response Granted.** The objection that the term You is vague, ambiguous, overbroad, compound, that the term Livestock is overbroad, and that the request is not relevant or reasonably calculated to lead to the discovery of admissible evidence, and that the request is vague ambiguous, overbroad and compound as phrased are Overruled. Defendant Erickson is ordered to conduct a diligent search and make reasonable inquiry and then, by November 2, 2029, serve a verified supplemental response without objections to Request for Admission Number 42 that either (1) unambiguously admits the Request, (2) denies the request, (3) admits so much of the request as can be admitted and denies the rest, or (4) states that Defendant Dan Erickson possesses insufficient information to either admit or deny the Request and therefore denies the request.

Request for Admission Number 43 [Admit that, on at least one occasion prior to the incident, you reported multiple animals missing on the same date] **Motion to Compel Further Response Granted.** The objection that the term You is vague, ambiguous, overbroad,

compound, that the term incident is overbroad, and that the request is not relevant or reasonably calculated to lead to the discovery of admissible evidence are Overruled. Defendant Erickson is ordered to conduct a diligent search and make reasonable inquiry and then, by November 2, 2029, serve a verified supplemental response without objections to Request for Admission Number 43 that either (1) unambiguously admits the Request, (2) denies the request, (3) admits so much of the request as can be admitted and denies the rest, or (4) states that Defendant Dan Erickson possesses insufficient information to either admit or deny the Request and therefore denies the request.

Request for Admission Number 44 [Admit that, prior to reporting livestock as missing on February 9, 2021, you had not personally seen some of those animals for several months] **Motion to Compel Further Response Granted.** The objection that the term You is vague, ambiguous, overbroad, compound, that the request is not relevant or reasonably calculated to lead to the discovery of admissible evidence, that the phrase those animals renders the request unintelligible and presumed facts not in evidence, that the request is not full and complete of itself, that the term livestock is overbroad, and that the phrase personally observed is vague, ambiguous and overbroad are Overruled. Defendant Erickson is ordered to conduct a diligent search and make reasonable inquiry and then, by November 2, 2029, serve a verified supplemental response without objections to Request for Admission Number 44 that either (1) unambiguously admits the Request, (2) denies the request, (3) admits so much of the request as can be admitted and denies the rest, or (4) states that Defendant Dan Erickson possesses insufficient information to either admit or deny the Request and therefore denies the request.

Request for Admission Number 45 [Admit that, at the time you reported livestock as missing on February 9, 2021, you did not know whether all of those animals were alive] **Motion to Compel Further Response Granted.** The objection that the term You is vague, ambiguous, overbroad, compound, that the request is not relevant or reasonably calculated to lead to the discovery of admissible evidence, that the phrase those animals renders the request unintelligible and presumed facts not in evidence, and that the term livestock is overbroad are Overruled. Defendant Erickson is ordered to conduct a diligent search and make reasonable inquiry and then, by November 2, 2029, serve a verified supplemental response without objections to Request for Admission Number 45 that either (1) unambiguously admits the Request, (2) denies the request, (3) admits so much of the request as can be admitted and denies the rest, or (4) states that Defendant Dan Erickson possesses insufficient information to either admit or deny the Request and therefore denies the request.

Request for Admission Number 48 [Admit that you reported livestock as missing on February 9, 2021] **Motion to Compel Further Response Granted.** The objection that the term You is vague, ambiguous, overbroad, compound, that the request is not relevant or reasonably calculated to lead to the discovery of admissible evidence are Overruled. Defendant Erickson is ordered to conduct a diligent search and make reasonable inquiry and then, by November 2, 2029, serve a verified supplemental response without objections to Request for Admission Number 48 that either (1) unambiguously admits the Request, (2) denies the request, (3) admits so much of the request as can be admitted and denies the rest, or (4) states that Defendant Dan Erickson possesses insufficient information to either admit or deny the Request and therefore denies the request.

Request for Admission Number 50 [Admit that you were responsible for maintaining the fencing along La Grange Road where you pastured livestock] **Motion to Compel Further Response**

Granted. The objection that this information has previously been provided by other discovery means, and is unreasonably cumulative, duplicative and harassing, that the term livestock is overbroad and seeks a legal conclusion, and that the term You is vague, ambiguous, overbroad, compound are Overruled. Defendant Erickson is ordered to conduct a diligent search and make reasonable inquiry and then, by November 2, 2029, serve a verified supplemental response without objections to Request for Admission Number 50 that either (1) unambiguously admits the Request, (2) denies the request, (3) admits so much of the request as can be admitted and denies the rest, or (4) states that Defendant Dan Erickson possesses insufficient information to either admit or deny the Request and therefore denies the request.

Request for Admission Number 58 [Admit that you used the property located at 21216 La Grange Road, Snelling, California for operations related to your ranching activities] **Motion to Compel Further Response Granted. The objection the term You is vague, ambiguous, overbroad, compound, and that the request is not relevant or reasonably calculated to lead to the discovery of admissible evidence, are Overruled. Defendant Erickson is ordered to conduct a diligent search and make reasonable inquiry and then, by November 2, 2029, serve a verified supplemental response without objections to Request for Admission Number 58 that either (1) unambiguously admits the Request, (2) denies the request, (3) admits so much of the request as can be admitted and denies the rest, or (4) states that Defendant Dan Erickson possesses insufficient information to either admit or deny the Request and therefore denies the request.**

Request for Admission Number 60 [Admit that you take bulls to the property located at 21216 La Grange Road, Snelling, California] **Motion to Compel Further Response Granted. The objection the term You is vague, ambiguous, overbroad, compound, that the request is not relevant or reasonably calculated to lead to the discovery of admissible evidence, and that the request seeks information provided in other discovery requests and is unreasonably cumulative, duplicative and harassing are Overruled. Defendant Erickson is ordered to conduct a diligent search and make reasonable inquiry and then, by November 2, 2029, serve a verified supplemental response without objections to Request for Admission Number 60 that either (1) unambiguously admits the Request, (2) denies the request, (3) admits so much of the request as can be admitted and denies the rest, or (4) states that Defendant Dan Erickson possesses insufficient information to either admit or deny the Request and therefore denies the request.**

Request for Admission Number 61 [Admit that the subject bull was used to pasture cows owned by you in addition to cows not owned by you] **Motion to Compel Further Response Granted. The objection the term You is vague, ambiguous, overbroad, compound, that the term pasture cows is vague, ambiguous, overbroad and compound, that the request is not relevant or reasonably calculated to lead to the discovery of admissible evidence, and that the request seeks information provided in other discovery requests and is unreasonably cumulative, duplicative and harassing are Overruled. Defendant Erickson is ordered to conduct a diligent search and make reasonable inquiry and then, by November 2, 2029, serve a verified supplemental response without objections to Request for Admission Number 61 that either (1) unambiguously admits the Request, (2) denies the request, (3) admits so much of the request as can be admitted and denies the rest, or (4) states that Defendant Dan Erickson possesses insufficient information to either admit or deny the Request and therefore denies the request.**

Request for Admission Number 63 [Admit that you provided bulls for breeding purposes to Tyson Jones] **Motion to Compel Further Response Granted.** The objection the term You is vague, ambiguous, overbroad, compound, that the request is not relevant or reasonably calculated to lead to the discovery of admissible evidence, and that the request seeks information provided in other discovery requests and is unreasonably cumulative, duplicative and harassing are Overruled. Defendant Erickson is ordered to conduct a diligent search and make reasonable inquiry and then, by November 2, 2029, serve a verified supplemental response without objections to Request for Admission Number 63 that either (1) unambiguously admits the Request, (2) denies the request, (3) admits so much of the request as can be admitted and denies the rest, or (4) states that Defendant Dan Erickson possesses insufficient information to either admit or deny the Request and therefore denies the request.

Plaintiffs' Motion for Sanctions is GRANTED. Defendant Erickson is ordered to pay monetary sanctions to Plaintiff in the amount of \$1,577.97 on or before November 2, 2029. Defendant's request for sanctions is **DENIED.**

Motion to Quash Plaintiff's Notice in Lieu of Subpoena

Granted. The portion of the request seeking photos or videos does not identify any specific photo or video or describe the subject matter or location depicted. While such description may be adequate for a discovery request for production, it is not adequate for a Notice to Produce in Lieu of Subpoena because Code of Civil Procedure § 1987(c) requires identification of the "exact materials or things."
